



CLEARWATER COUNTY COURT SYSTEM

Sixth Judicial Circuit | Office of the Clerk of the Circuit Court
Criminal Justice Center, 14250 Court Street, Clearwater

FORM CR-12
FILED BY THE DEFENSE
REV. 08/2026

IN THE COUNTY / CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT IN AND FOR CLEARWATER COUNTY

MOTION TO SUPPRESS EVIDENCE

Ask the Court to exclude evidence obtained unlawfully

THE STATE OF FLORIDA THE STATE OF FLORIDA VS. DEFENDANT Full name of party	CASE NUMBER (UCN) Format: 26-CF-000123 (YY - TYPE - NUMBER) DIVISION JUDGE / HEARING OFFICER CF felony MM misdemeanor CT crim. traffic TR traffic CC civil SC small claims
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HOW TO USE THIS FORM

Use this when police got evidence in a way you believe broke the rules - a stop without reasonable suspicion, a search without a warrant or consent, or a statement taken without Miranda. Identify the exact evidence you want excluded and the exact rule you say was broken. Vague motions get denied.

The defendant, by and through undersigned counsel, moves this Court to suppress the evidence identified below and as grounds states:

EVIDENCE AT ISSUE

DATE OF SEARCH / SEIZURE / STATEMENT MM/DD/YY	LOCATION 	OFFICER(S) INVOLVED
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ITEMS SOUGHT TO BE SUPPRESSED

NO.	ITEM OR STATEMENT	HOW OBTAINED	GROUND

LEGAL GROUNDS ASSERTED

- | | |
|---|---|
| ☐ Stop made without reasonable suspicion | ☐ Arrest made without probable cause |
| ☐ Search conducted without a warrant | ☐ Warrant lacked probable cause |
| ☐ Warrant lacked particularity | ☐ Search exceeded the scope of the warrant |
| ☐ Consent was not voluntarily given | ☐ Consent was withdrawn and ignored |
| ☐ No valid exception to the warrant requirement | ☐ Miranda warnings not given |
| ☐ Statement taken after right to counsel invoked | ☐ Statement was involuntary or coerced |
| ☐ Chain of custody was broken | ☐ Fruit of an earlier unlawful act |

STATEMENT OF FACTS

WHAT ACTUALLY HAPPENED, IN CHRONOLOGICAL ORDER, WITH CITATIONS TO THE AFFIDAVIT OR VIDEO

ARGUMENT

WHY THE FACTS ABOVE VIOLATE THE RULE YOU IDENTIFIED, AND WHY THE EVIDENCE MUST BE EXCLUDED

RELIEF REQUESTED

STATE EXACTLY WHAT YOU WANT THE COURT TO ORDER

HEARING REQUEST

☐ Evidentiary hearing requested

☐ Officer testimony required

☐ Body camera footage to be played

☐ Motion may be decided on the papers

CERTIFICATE OF SERVICE: I certify that a copy of this motion was furnished to the Office of the State Attorney on the date written below.

DEFENSE COUNSEL

Bar number

PRINTED NAME

DATE

RULING OF THE COURT

MOTION GRANTED

The identified evidence is suppressed and may not be used by the State at trial.

MOTION GRANTED IN PART

Suppressed as to the items noted below; denied as to the remainder.

MOTION DENIED

The evidence was lawfully obtained and is admissible.

HEARING SET

An evidentiary hearing is scheduled for the date below.

HEARING DATE

MM/DD/YY

TIME

HH:MM

ITEMS SUPPRESSED

FINDINGS OF FACT AND CONCLUSIONS OF LAW

JUDGE

Sixth Judicial Circuit

PRINTED NAME

DATE